

BRIDGING PROMISE AND REALITY: EVALUATING THE RIGHT TO EDUCATION ACT IN TODAY'S INDIA

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Abstract

A key rights-based intervention, the Right of Children to Free and Compulsory Education Act, 2009 (RTE Act), under the provisions of Article 21A of the Constitution, is an attempt to ensure universal elementary education in India. However, over fifteen years after its promulgation, the effectiveness of the operational facet of the Act continues to be the point of dispute among scholars. It is through this exposition that the critical socio-legal analysis of the RTE Act in modern times is provided, which focuses on empirical realities that are evident at the grassroots level. Even though the Act has produced surface improvements in enrolment, access, and gender parity, the improvements have been unsuccessful in converting into learning outcomes. The paper, relying on governmental reports, judicial proclamations and empirical studies, including the Annual Status of Education Report (ASER) archives the numerous challenges still faced, including insufficient infrastructure, lack of teachers, unequal delivery, socio-economic and cultural obstacles, migration trends, discrimination and the digital divide. COVID-19 also made evident the systemic lack of digital preparedness. In the article, it is argued that the future success of the RTE Act depends on the paradigm shift between the compliance-based framework towards the learning outcomes and the inclusivity-based framework. This shift would require greater teacher capacity, fair infrastructure development, strong governance systems, and context-directed policy reforms, which would bring to fruition the constitutional promise of quality education for every child.

Keywords: Education, RTE, Educational Inequality, Fundamental Rights, Article 21-A

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INTRODUCTION

The Right to Education Act, 2009¹, is one of such legislations in India that has been the most ambitious in playing a role in changing the education scenario in the country. Its implementation was in response to the constitutional right of education as an essential right under Article 21-A of the Constitution, and the RTE Act ensures the right of free and compulsory education among children between the ages of 6 and 14 years. Over 25 years of implementation, the Act remains a debatable issue among policymakers, scholars, civil society stakeholders, and grassroots practitioners. The main question that lingers is whether the promises of the Act have been made into reality on the ground level.

The article provides a multi-dimensional approach to investigating the effectiveness of the RTE Act in the current times. It discusses its success, systemic obstacles, challenges on the ground, and the degree to which the Act has been effective in meeting equitable, inclusive and quality education. Since India is trying to harmonize its educational goals with the Sustainable Development Goals (especially SDG 4: Quality Education)², it is highly topical and needed to analyze the practical effect of the RTE Act.³

The real sense of Indian education of present day is a different story on the ground level. Firstly, enrolment rates have increased, access has been enhanced and awareness created. Conversely, poor infrastructure, shortage of teachers, crisis in learning outcomes, socio-economic factors and uneven mechanisms of implementation are some of the problems that hinder the desired results of the Act. The COVID-19 pandemic also exacerbated and increased the digital divide, which increased inequalities among children who belong to various socio-economic classes.⁴

The article, written in thematic sections, tries to fill the gap between the intent and the experience of the legislation on the ground. It is a critical analysis of the provisions, outcomes and limitations of the Act in relation to empirical data, government reports, scholarly literature and field-based observations. The aim is to deliver a subtle, detailed evaluation, which will capture the modern-day realities of the education system in India.

¹ Right of Children to Free and Compulsory Education Act, No. 35 of 2009, INDIA CODE (2009).

² Government of India, NITI Aayog, *SDG India Index & Dashboard 2023-24*, especially SDG 4 indicators.

³ Ministry of Human Resource Development, *Right of Children to Free and Compulsory Education Act, 2009: Status Report* (2014).

⁴ Mehendale, Archana; Mukhopadhyay, Rahul & Namala, Annie, "Right to Education: Challenges of Policy Design and Implementation," 49 (9) *Economic and Political Weekly* 23 (2014).

HISTORICAL BACKGROUND AND EVOLUTION OF THE RIGHT TO EDUCATION

The idea of education as a human right in India did not take place overnight, but was a decades-long struggle, policy development, and judicial action. Most of the Indian education system, before the RTE Act, was managed by an assortment of policies such as the National Policy on Education (1986), Sarva Shiksha Abhiyan (SSA), and a variety of state-level policies. These programmes made access significantly better but were unable to provide uniformity, equity, and enforceable rights.

The historical decision of *Mobini Jain v. State of Karnataka*⁵ by the Supreme Court. The broad framework was provided in this case, which proclaimed the right to education implicit in the right to life in Article 21. This was restated in *Unnikrishnan v. State of Andhra Pradesh*⁶, which defined the State as having a responsibility of providing free education to children up to 14 years of age. It was finally in 2002 with the constitutional amendment that Article 21A was added, making statutory enforcement possible in the form of the RTE Act.

This solid constitutional foundation notwithstanding, there is still a lot of breach between policy vision and ground reality. The access to education by children is still influenced by the socio-economic inequalities, caste and gender discrimination, and urban-rural divide that occur historically. This historical course is necessary to assess the contemporary applicability of the Act.

Indian socio-political ambitions are also manifested in the development of the right to education. Education has been traditionally regarded as a means of nation-building, social transformation and empowerment of the marginalised groups. However, for a large portion of independent Indian history, educational policy was disjointed and underinvested. The Directive Principles under the Constitution, especially Article 45, did envisage free and compulsory education to all children, but due to the unenforceability of the same, the process was slow and uneven.

During the 1980s and 1990s, the increased activist engagement of civil society, scholarly studies and international commitments, including the Education for All (EFA) movement, started to bring education to the centre of policy debate. The emergence of grassroots movements, such as the Lok Jumbish Project, the District Primary Education Programme (DPEP) and movements

⁵ (1992) 3 SCC 666. See, Animesh Kumar, “Evolution of Right to Education in India” 2 (1) *Law and Society: A New Challenge* 27 (2015)

⁶ (1993) 1 SCC 645. See, Animesh Kumar, “Right to Education in India: The Role of Judiciary” 4 (2) *Indian Journal of Socio Legal Studies* 39 (2015)

organised by such organisations as the Right to Education Forum, brought to the fore the fact that the rights-based approach was urgent.

Moreover, India is a member of such international organisations as the UN Convention on the Rights of the Child 1989, and it imposed pressure on the state to adjust domestic legislation to the international standards, especially those that relied on universal education. The progressive pressure of case law, political discussions, grassroots movements, and global commitments provided an opportune condition towards the process of passing the RTE Act in 2009.

However, despite the enactment of the Act, the history of historical inequalities still hangs high. The history of the right to education is not just a legal process but also an example of a sophisticated process of democratising the right to knowledge and breaking the system of social stratification in the country. This is the multi-layered history to understand the context of how the Act is performing within modern times.

KEY PROVISIONS OF THE RTE ACT AND THEIR INTENDED OBJECTIVES

According to the provisions of the RTE Act, a few transformation provisions were formed to restructure the educational ecosystem. They involve free and compulsory education, neighbourhood schools, a ban on capitation fees and screening processes, teacher-pupil ratios, infrastructural norms, inclusive education policies, the 25% quota of disadvantaged children in the private unaided schools, and School Management Committees to decentralise the management of schools.⁷

These provisions were aimed at not only increasing access but also quality and accountability. As an example, the required teacher training and the ongoing development of the qualification requirements were to professionalise teaching. School infrastructure norms, which included classrooms, separate boy and girl toilets, playgrounds and drinking water, were instrumental in developing a conducive school environment.⁸

Nonetheless, inconsistencies have dogged the implementation process. Some states were quick to adapt, whereas others were slow because of financial limitations, bureaucratic delays or political apathy. The outcome has been a patchwork of development that is seen in urban centres but not in the remote and disadvantaged areas.

⁷ Ministry of Human Resource Development, 'The Right of Children to Free and Compulsory Education Rules, 2010.

⁸ National Council for Educational Research and Training (NCERT), 'Teachers' Manual on Continuous and Comprehensive Evaluation (2010).

The other key guarantee of the Act is the no-detention policy that guarantees that pupils are not detained or expelled until the end of elementary schooling. This was to alleviate psychological pressure and promote retention. Although this was well-intended, this provision has been reproached because it has led to a drop in learning levels, and states have been allowed to reintroduce some exams under some conditions. However, the provision can be seen to be more inclusive of child-friendly education than the Act is.

Curriculum reform is also a focus of the Act, with the requirement that the curriculum should be changed towards learning activities that are child-focused and aimed at holistic development as opposed to rote learning. This is supported by the philosophies of education advocated by such philosophers as Mahatma Gandhi and Rabindranath Tagore, who saw schools as a place where people can be creative, think critically, and develop democratic values.

Also, it is necessary to create School Management Committees (SMCs) consisting of 75 percent parents to democratise the school and improve the involvement of the community. SMCs are viewed as watchdogs that should control the school operation, fund use and enforcement of norms. The truth of the matter is that most of these committees are not trained, not aware or not empowered with the real decision making, which limits their efficacy.

Reservation of 25% in Section 12(1)(c) is one of the most ambitious and controversial sections of the Act. It strives to ensure social integration by allowing children in the economically disadvantaged groups to enjoy private education. Although the policy has seen thousands of children join the elite institutions, there are such problems as late reimbursement, bureaucracy, and social discrimination. However, this provision indicates a daring effort to shatter socio-economic obstructions in the stratified Indian system of education.⁹

Also, the Act requires that all schools be recognised according to the infrastructure and quality standards. The unrecognised schools had no option but to upgrade or close their doors in a bid to do away with poor schools. Nevertheless, this clause has equally been criticised for having a disproportionate impact on low-cost private schools operating in low-income communities.¹⁰

The RTE Act, in principle, provides a detailed guideline on universal, equitable and quality elementary education. However, the difference between intent and practical application at the

⁹ RTE Act, 2009, s. 12(1)(c)

¹⁰ Prachi Srivastava, "Low-fee Private Schooling and the RTE Act: A Critical Examination," 47(23) *Economic and Political Weekly* 51 (2012).

level of the legislative process emphasises the necessity of more powerful enforcement tools, increased financial support, and political follow-up.

ACHIEVEMENTS AND SUCCESS INDICATORS OF THE RTE ACT

Still, the RTE Act has introduced some major changes in the educational situation in India despite the existing difficulties. Primary school enrolment has always been over 95 percent, dropouts have also reduced, and gender parity has also improved in some states. Such schemes as mid-day meals, free textbooks and uniforms have helped in this development.

The 25% quota in Section 12(1)(c) has afforded the children in the financially disadvantaged groups to learn with their counterparts in the private schools. Although the implementation has been different, most states have documented effective integration and enhanced socialisation among children. The other success is in the fact that there is greater accountability within the education system. Schools have become more conscious of their obligations, parents are more knowledgeable about their rights, and the civil society organisations are becoming increasingly engaged in monitoring.¹¹

These accomplishments should, however, be approached cautiously. Growth in enrolment does not necessarily result in better learning outcomes. In the Annual Status of Education Report (ASER), it is recurrently noted that children in most grades can neither read nor do basic arithmetic at the grade level, and this is a reflection of a serious learning crisis.

The RTE Act has also enhanced more inclusivity and social justice on top of enrolment and access, since children of marginalised communities and special categories have to be enrolled. Children of Scheduled Castes, Scheduled Tribes, Migrant families, and children with disabilities have enjoyed the provisions that are tailor-made to solve their barriers in education. A number of states have implemented some specific interventions, including bridge courses, seasonal hostels, and inclusive classrooms, reinforcing the equity-based view of the Act. The other significant success is the improvement of school infrastructure in the country. Thousands of schools were improved with the implementation of the RTE norms, through the building of classrooms, toilets, drinking water systems, and school boundary walls. These gains, albeit uneven, have aided the establishment of safer and child-friendly learning environments.

¹¹ Supra note 9.

Evidence-based planning is also shifting towards technology-based systems used to trace infrastructure gaps and teacher deployment, adopted by many states.¹²

The Act has also enabled decentralised governance structures, especially School Management Committees (SMCs). Transparency in the school operation has been enhanced by the active participation of parents particularly mothers. SMCs have been used in checking the attendance of teachers, the delivery of entitlements in a timely manner, and in handling school development plans. The development of such participatory structures is a major step to community-led education, although the effectiveness of these structures varies. Also, the RTE Act has encouraged state and national policy innovation. Programmes such as Learning Enhancement Programmes (LEP), remedial programs, basic literacy and numeracy motivational programmes and online instructional tools have become increasingly popular as governments seek to conform to the quality provisions of the Act. Kerala, Himachal Pradesh, and Tamil Nadu are the examples of the states who have shown significant improvements with great governance and investment in teacher training.¹³

However, the main problem is the discrepancy between access and learning. Although the Act has managed to take children to school, it has not been able to make them learn effectively once they are in school. This tension remains constant between quality and quantity and underscores the necessity to begin once again to consider pedagogical changes, the capacity of teachers, and systems of assessment. The success of the Act, as big as it is, should thus be viewed as the ground to further enhancement instead of an end to the educational process in India.

PERSISTENT CHALLENGES: GROUND-LEVEL REALITIES

The absence of consistency in implementation is one of the fundamental issues of the RTE Act. The rural and tribal areas still experience chronic teacher shortages, lack of development, multi-grade classes and high absenteeism. A high number of schools fail to comply with the infrastructural standards set forth by the Act, and a number of states have tried to request extensions a number of times.

This is complicated by socio-economic realities. Children of disadvantaged groups are also compelled to participate in labour, household chores, or take care of their siblings, which

¹² Nivedita Menon, "Accountability and Community Participation in School Governance," 52(32) *Economic & Political Weekly* 23 (2017).

¹³ R. Govinda, & Madhumita Bandyopadhyay, "Access, Participation and Progress in Elementary Education," 45(36) *Economic & Political Weekly* 47(2010).

restricts their chances of going to school on a regular basis. Females, especially girls, are exposed to numerous obstacles such as security issues, child marriage, difficulties in menstruation and domestic roles. The issue of caste-based discrimination in schools still continues in most schools and can be seen in the form of separation during seating, different treatment by the teachers and in group activities. Equally, children with disabilities still experience challenges because of poor special educators, the absence of available facilities, and poor awareness.¹⁴

The existence of the digital divide led to an additional degree of inequality during the pandemic. Millions of children were unable to get access to smartphones, stable internet, or digital learning devices, virtually kicking them out of the education system. The framework of the RTE Act failed to foresee such a crisis, and thus, there was a need to modernise. The other chronic problem is associated with the teacher quality and training. The pedagogical expertise of teachers is usually not as high as needed to provide child-centred, competency-based education even in those settings where teachers can be found. Teachers have a non-academic workload to complete, including working in elections, taking census surveys, and administering the administration, which makes them spend even less time in the classroom. States that have a high population of para-teachers or contract teachers have an added challenge in upholding standards of teaching because they tend to be volatile, poorly paid, and do not have opportunities for professional development.¹⁵

The problem of school governance can also influence proper implementation. Although School Management Committees are supposed to democratise the decision-making process, they operate in many different ways. Formation of committees and their representation within certain groups, particularly the marginalised groups, does not create awareness in committee members, and some members are afraid to take action against school authorities. The independence that is desired by these committees is undermined by political interference and bureaucracy in releasing funds. Also, seasonal work and migration do not allow continuity in education. The families that were involved in either brick kilns, building work, farming, or informal labour tend to change their residence regularly, which leads to long-term absenteeism or dropout. Special

¹⁴ Geetha B. Nambissan, "Equity in Education? Schooling of Dalit Children in India," 38 (44) *Economic & Political Weekly* 4581 (2003)

¹⁵ Sukhadeo Thorat & Katherine Newman, *Blocked by Caste: Economic Discrimination in Modern India* (Oxford University Press 2010).

considerations of the migrant children are mentioned in the RTE Act, although there is still inadequate implementation of the same.¹⁶

Another challenge at the ground level is language barriers. Language minorities and tribal belt children usually have difficulties with instructions being taught in languages they do not know well. Although the Act is in favour of mother-tongue instruction, most states do not have resources or materials to make this work. Also the presence of socio-cultural norms which are deep-rooted restricts the involvement of both girls, children with disabilities, and lower caste. Most of the schools already do not have safe transport, boundary wall, proper toilets, or a system of dealing with harassment and discrimination. Those problems do not only decrease the attendance level and also interfere with the sense of belonging and dignity of children in the school setting¹⁷.

All these unresolved problems indicate that the success of the RTE Act does not only lie in the law since it is imperative to consider the more social, economic, and cultural realities that influence how children acquire an education.

TEACHER-RELATED ISSUES: THE BACKBONE OF THE EDUCATION SYSTEM

The most fundamental part of the education system is teachers, and they still happen to be one of the least considered elements in the implementation of RTE. Teacher shortage is an acute problem in many states, which causes overwork and deterioration of teaching standards. Contractual teachers who receive significantly lower wages than their permanent colleagues have low job security, less training, and lack motivation.

Absenteeism of teachers is a significant problem, especially in rural schools. In addition, teachers are often given non-academic tasks like election work, census survey and administration of welfare schemes that limit the time they can spend teaching. The quality of training programmes is very different, although the Act provides regular training. According to reports of many teachers, training is, in theory, irrelevant to classroom realities and not effective in helping teachers acquire new pedagogical skills. Such issues undermine the efficacy of the Act and emphasise the necessity of powerful changes among teachers.¹⁸

¹⁶ Smita, "Distress Seasonal Migration and Its Impact on Children's Education," 44(4) *Economic & Political Weekly* 59 (2009)

¹⁷ Supra note 9 at ss. 3, 8, 9 & 12

¹⁸ M. Kremer *et. al.*, "Teacher Absence in India: A Snapshot," 20(2) *Journal of the European Economic Association* 658 (2005)

The problem has even greater depth considering the regional differences in the distribution of the teachers. The highest pupil to teacher ratios are in the states of Uttar Pradesh, Bihar, Jharkhand and Rajasthan, which are much higher than the norms provided by the RTE and other southern and northeastern states are relatively good. This disproportion is usually caused due to lack of proper planning, tardiness of recruiting procedures and inefficiency in administration. In the distant tribal regions, teachers do not want to get posted because of the poor facilities, commuting distance, and incentives. Therefore, children in such areas are the ultimate victims of structural neglect.¹⁹

The other issue is the current disparity between the qualification of the teachers and the classroom requirements. Although the RTE Act reflects professional qualification, most teachers have not been well prepared in basic literacy and numeracy instructions, inclusive education, or multilingual education. National achievement survey (NAS) reports and ASER reports all bring attention to the fact that most classroom practices are based on rote learning, lack of student engagement and the use of old approaches to teaching. This erodes the pedagogical vision of the Act which is child-centric.

Moreover, poor accountability is caused by the lack of effective teacher evaluation system and feedback. The current evaluation systems are more based on administrative conformity rather than pedagogical efficiency. Participatory feedback mechanisms, peer based learning framework and continuous mentoring that are necessary to support growth in teachers are feeble or non-existent in most states. Education models like Finland, Singapore and South Korea that have been successful invest a lot in teacher mentorship which India has not yet to scale up.²⁰

In addition to this the educators tend to experience emotional pressure and burnout. The size of classes, the necessity to finish the syllabus, working with the administration and the absence of support staff adds to their workload. Instructors in unsafe or under-resourced settings become more stressed and this impacts their morale and performance as teachers.

The absence of technological preparedness among teachers is one of the most underestimated fields. The digital gap was revealed during the COVID-19 pandemic. However, some of the teachers adjusted fast, others could not cope with the digital platform, create online materials, or interact with the students online. Although the government has been encouraging digital

¹⁹ V. Ramachandran, M. Pal, S. Jain & S. Shekar, *Teachers in the Indian Education System: How We Manage the Profession* (Azim Premji University 2018).

²⁰ National Council for Educational Research and Training (NCERT), *Teachers' Manual on Continuous and Comprehensive Evaluation* (2010).

education, there has been no adequate revising of the teacher training modules in order to develop a technological capacity. Also, the issue of teacher accountability is usually politicised. In some states, teacher unions determine the process of transfer, slow down disciplinary action and oppose reforms like biometric attendance systems. Although unions have a great role in ensuring the rights of teachers, they at times make it very difficult to keep the teaching profession transparent and efficient.²¹

At the end the teachers are also demotivated by the absence of social recognition. The women teachers in most communities are faced with safety issues, long commuting times, and unprofessional development. In the absence of a friendly ecosystem, teachers will find it hard to provide the quality education they had envisaged in the RTE Act.

On the whole, these interrelated issues demonstrate that meaningful implementation of the Act could not be achieved without improvement of teacher capacity, morale and working conditions. The improvement of the education system needs to be based on the principle of not only hiring more teachers but also investing in their further development, well-being, and empowerment. It is only at this point that the RTE Act is able to have a transformative impact as was intended.

INFRASTRUCTURE GAPS: A PERSISTENT STRUCTURAL CHALLENGE

The infrastructure plays a major role in the learning experience of a child, and most of the schools in India still do not have basic facilities. A number of government reports point out that most schools lack proper toilets, clean drinking water, adequate classrooms, ramps accommodating the disabled children, libraries, internet and walls. Lack of these facilities directly affects attendance and learning. An example is that the absence of toilets among girls leads to absenteeism in adolescent girls, and the absence of electricity also obstructs the use of electronic tools and contemporary teaching techniques.²²

Despite the fact that clear norms are stipulated by the RTE Act, there is not much enforcement. This crisis is caused by budgetary limits, bureaucratic and inappropriate use of funds. Infrastructure strengthening cannot be achieved through the provision of funds only but also through accountability and involvement of the community. The issue of poor infrastructure is even worse in the rural and tribal areas and the hilly landscapes whereby the terrain is very difficult, less connected and transportation is less developed thus it is much harder to build and

²¹ NITI Aayog, School Education Quality Index (SEQI): Teacher Performance and Governance Indicators (2021)

²² Ministry of Education, Government of India, Unified District Information System for Education Plus (UDISE+) Report 2021-22.

maintain school buildings. Most of the schools are run in temporary buildings or run down buildings where children are exposed to risks of safety. Extreme weather conditions, landslides, and seasonal flooding usually make the situation worse resulting in constant school closures that hamper continuity in learning.²³

Also, the need to have inclusive infrastructure has persisted in marginalizing children with disabilities. Although the Act requires barrier-free access, there is a sharp contrast on the ground as things are. Classrooms, toilets, playgrounds, and teaching materials are inaccessible even in the places where they have ramps. The lack of support tools and resource teacher trainers also contributes to the inability of children with special needs to participate fruitfully.

Another issue of concern is digital infrastructure gap. Most of the schools have no computers, projectors or good internet access, even though the national initiatives have been encouraging learning based on ICT. The COVID-19 pandemic put this gap into a very clear perspective: schools that lacked a digital infrastructure failed to implement a blended or online learning model, making millions of children victims of learning loss. This revealed the shortcomings of the RTE Act which was formulated when digital education was not the focus of schooling.²⁴

The second aspect of infrastructural insufficiency is that sanitation and hygiene facilities of most government schools are poor. No proper toilets, lack of running water and bad maintenance conditions have a negative impact on the health and dignity of students. This is especially on girls, who might miss school during their menstrual days because they are not given any privacy or even a basic hygiene product. Finally the development of infrastructure is often brought to a standstill by delays in the allocation of funds and a lack of coordination between the central, state, and local governments. Bureaucratic delays, corruption and absence of technical supervision mean poor construction or incomplete project despite the sanction of funds.²⁵

In general, industrial solutions to infrastructure gaps must be multi-layered, which involves making specific investments, open monitoring, capacity building of the local authorities, and active participation of the communities. The overall objectives of the RTE Act cannot be achieved without good, safe, and inclusive infrastructure.

LEARNING OUTCOMES CRISIS: BEYOND ENROLMENT

²³ National Institute of Educational Planning and Administration (NIEPA), Elementary Education in India: Progress Towards RTE Norms (2020).

²⁴ Jean Dreze & Amartya Sen, *An Uncertain Glory: India and Its Contradictions* (Princeton University Press 2013).

²⁵ Ministry of Jal Shakti, Government of India, Swachh Vidyalaya Initiative: National Assessment Report (2019).

The increasing disparity between enrolment and actual learning is one of the most serious issues that are provided in the analysis on the ground level. Children tend to advance in grades in a manner that they do not get the basic skills. This grade slippage leaves accumulation of deficits, which is detrimental to future learning. The students, who cannot read fluently and do the basic arithmetical procedures when they enter the upper primary level are at a great disadvantage as they lose confidence and lose interest in the learning process all together.²⁶

The policy of no-detention that was based on progressive principles was criticized as having contributed to low learning results. Although the policy was supposed to ensure stress-free learning environment and a decrease in the rate of drop outs, most educators disapproved that the policy was indirectly lowering accountability among the teachers and students. In automatic promotion, schools used to pay much attention to finishing the syllabus and neglecting conceptual knowledge. Even though the policy has since been revised to permit the use of performance during detention on basis of re-examination attempts, the fundamental issue of it all remains, which is the necessity of changing the mode of learning to competence based learning.²⁷

The regular reports by ASER indicate that very high proportions of children in Grade 5 are unable to read Grade 2-level text. According to this learning crisis, the implementation of the Act has been distorted so that it has focused more on admission and not on quality of teaching or pedagogy. The focus on the infrastructure and enrolment statistics has at times eclipsed what has equally been a significant task of refining classroom activities, evaluation systems, and the learning conditions. Consequently, children who are on paper in school may not be getting appropriate education.

The other difficulty is the curriculum which has often been accused of being thick, examination based and unrelated to the actual lives that students live. Most learning environments continue to use rote learning and have few alternatives in terms of critical thinking, creativity and interpersonal learning. The lack of connection is also exacerbated by massive classes, inadequate teaching help, and the absence of individualised teaching of slow learners.

Systemic reforms are necessary to handle this problem. Improved assessments based on competences and not on memory, continuous training of teachers in the new style of pedagogy, and curriculum changes based on experiential learning can contribute greatly to better results.

²⁶ Jean Dreze & Amartya Sen, *An Uncertain Glory: India and Its Contradictions* (Princeton University Press 2013).

²⁷ National Council of Educational Research and Training (NCERT), *Learning Outcomes at the Elementary Stage* (2017).

Technology may also transform: digital learning tools and adaptive learning environments as well as smart classrooms can offer ways to personalise the learning process and minimise gaps. Nonetheless, the implementation of such tools should be regarded with care, and these tools should be made to be equal so that the rural and marginalized communities can have equal access. Community involvement and school supervision as well as academic support programmes such as remedial classes may be used in bridging the gap in learning as well. Finally, enhancing the learning outcomes should be the main target of the RTE implementation in the next decade.

SOCIO-ECONOMIC AND CULTURAL BARRIERS: THE INVISIBLE OBSTACLES

Education is not done in a vacuum. The realities of socio-economic enable children to see, acquire, and utilize schooling. One of the largest hindrances to education is poverty. Poor families are faced with the challenge of providing and satisfying subsistence needs rather than providing and satisfying future education results. Children, particularly boys, in most houses are supposed to support their families by working, and girls often have to cope with domestic duties. This financial necessity drives children into inconsistent school attendance or total school dropouts. Although schooling may formally be free, other costs like uniforms, transport, school books and even private tutoring still weigh down low income families and detract effective participation.²⁸

Gender inequality has an impact on education as well. Although gender parity in the primary level has improved, the dropout rates of adolescent girls are still high since some girls are marrying at very young ages, they do not feel safe and their social norms do not favor the education of girls. Girls in most rural regions have mobility limitations preventing their access of the schools that are far away. Stigma associated with menstruation as well as lack of good sanitation facilities also impact attendance. These deeply stratified gender edifice construct the school atmosphere in which girls can be enrolled in record books without being in reality classes. In the classroom, the castes are still active. Children in Scheduled Castes, Scheduled Tribes and Other Backward Classes are also similarly discriminated against either implicitly or explicitly in confidence and learning. Cases of caste segregation in mid-day meals, unequal sitting, and biased attitude of teachers in various states have also been reported. Not only do such discriminatory

²⁸ Ekansh "Education Poverty: Understanding the Challenges and Solutions," available at: https://blog.goedu.in/education-poverty-challenges-and-solutions/?utm_source (last visited on 12.02.2026).

practices hinder academic progress, but they also strengthen psychological trauma and restrict the sense of belonging and involvement in children.²⁹

The disabled children face difficulties in mobility, communication and social integration. Numerous schools do not have resource teachers, available structure, or inclusive teaching. Although emphasis of the RTE Act is on inclusive education, the disparity between policy and practice is still broad. Learners with visual, hearing, and intellectual disabilities usually rely on specialised schools, which, however, most government schools do not offer. Parents with such children often testify to feeling marginalized by the mainstream education system because of the inadequacy of the infrastructural facilities as well as the stigma of the society.

The other socio-economic issue, which interferes with schooling, is migration. The seasonal migrants, such as the construction workers, agricultural workers or brick kiln workers tend to switch locations several times a year. They have their children facing frequent interruptions at school and thus learning continuity is a challenge. States have started seasonal hostels or traveling schools, but not all of them have equally taken the initiative. These barriers are important to understand so as to make policies that are ground-level real. The education policy should be aware of these overlapping socio-economic issues where access, retention and learning is not just assured in paper but being realised in the day to day life of children. It is only then that the RTE Act can have its transformative potential.

THE ROLE OF TECHNOLOGY: OPPORTUNITY AND INEQUALITY

Technology can transform education, but it may also increase the inequalities that exist. This duality was more pronounced than at any previous time due to the pandemic. Although the urban students shifted to online learning quite easily, millions of children in rural areas and low-income individuals were not included. In most sections of India, children used to share smartphones, intermittent mobile connections, or borrowed phones where possible. In the case of families having several school-going children, online classes were almost impossible to access. The outcome was to increase the learning gap that was disproportionately affecting the marginalised groups.³⁰

²⁹ Adv. Sandra Sachin, "Education, Poverty and Economic Development," available at: https://www.shekhar-law-office.com/articles/is-breaking-up-a-crime?utm_source (last visited on 11.01.2026).

³⁰ Sudeep A.M. & Akshay M., "A Study on the Impact of Poverty on Educational Access and Student Achievement in India," available at: https://tjjer.org/tjjer/papers/TIJERD001022.pdf?utm_source (last visited on 21.01.2026).

The RTE Act that has been prepared in 2009 fails to take the issue of technology-based education properly into consideration. Digital literacy and internet penetration were not the focus of the definition of quality education at the moment of its enactment and were low. Therefore, the Act does not specify the provision of digital infrastructure and schools and governments unprepared to follow technological-based models of learning are left. These restrictions became clear during the pandemic when most state governments rushed to implement online courses, video classes, or learning via mobile devices, yet lacked a legal framework that would allow imposing inconsistency and inequality in delivery.³¹

Digital divide is not just a device issue since it involves electricity, access to internet, digital literacy as well as an enabling learning atmosphere at home. The electricity supply is still problematic in most rural places, so children have no opportunity to charge their devices or use virtual classes. Low-speed networks are a hindrance to effective learning even in cases where connectivity is available. Also, digital literacy of parents especially in the marginalised communities is low and thus limits their capacity to mentor or assist the learning of their children. Gender norms led to denying girls access to digital devices in certain homes because girls were not encouraged to use mobile phones or because boys were traditionally given education.³²

In addition to infrastructure, the socio-emotional setting is also important in digital learning. A large number of the children do not have a place to study quietly, parental supervision and support at home. This atmosphere has direct impact on the concentration, motivation and learning outcomes. These underlying problems cannot be overlooked and turned into a privilege and not a right of digital education. Going forward, technology has to be incorporated at a meaningful level as opposed to a superficial one. Classroom teaching should not be substituted with digital tools. The hybrid models could add value to learning by enabling the students to watch video lessons, practice exercises, and interactives at their own pace. The integration, however, requires some careful planning rather than implementation at will.

Digital pedagogy training of teachers is essential. Lack of training on digital tools, instructional design, and online classroom management was one of the reasons why many teachers were struggling to cope with the shift to online platforms. Training programs should not be confined to simple device manipulation but aim to produce interactive learning programs that are student-

³¹ Leah Rodriguez "Understanding How Poverty is the Main Barrier to Education," available at: <https://www.globalcitizen.org/en/content/poverty-education-satistics-facts/> (last visited on 21/01/2026).

³² Vimala Ramachandran, *Public Education in India: Challenges and Prospects* (Routledge 2016).

centred. The access gap can be closed with the help of investments in infrastructure, including the digital labs in schools, community internet centres and public Wi-Fi zones. Panchayats and the local governments can actively participate by availing community facilities to learn digitally especially in remote areas.

Lastly, the mechanisms of monitoring within the RTE framework have to be modified to involve digital access and digital literacy as indicators of quality in the education. Technology can only democratize education through a holistic, equity-based approach, and help realize the vision of RTE Act in the modern-day world.

CONCLUSION: TOWARDS A MORE EFFECTIVE FUTURE FOR THE RTE ACT

The RTE Act remains one of India's most progressive social legislations, but its effectiveness is limited by structural, socio-economic, and administrative challenges. While the Act has succeeded in increasing enrolment, raising awareness, and initiating crucial conversations about educational equity, it has not fully achieved its core objective of ensuring meaningful, equitable, and high-quality education for every child. The gap between legislative intent and grassroots reality continues to be wide, particularly for children from marginalised socio-economic backgrounds, remote regions, and vulnerable social groups.

A reimagined future for the RTE Act must begin with acknowledging that access is only the first step learning, inclusivity, and empowerment must follow. The Act must evolve beyond the traditional focus on inputs and compliance to embrace a learning-outcome-centric approach. This requires systemic reforms that strengthen the pillars of education: teachers, infrastructure, pedagogy, governance, and community participation.

Teacher reforms must form the backbone of future efforts. Well-trained, motivated, and adequately supported teachers are essential for improving learning outcomes. This includes investing in continuous professional development, reducing non-academic burdens, filling teacher vacancies, and enhancing accountability through supportive, not punitive, mechanisms. Teachers should be empowered as leaders of change, not restricted to administrative checklist compliance.

Infrastructure development must also be viewed not merely as a construction exercise but as a commitment to dignity, safety, and an enabling environment. Functional toilets, electricity, digital access, libraries, playgrounds, and secure buildings are not privileges they are educational rights.

Strategic investments, transparent utilisation of funds, and decentralised monitoring can lead to sustained improvements.

The need to integrate technology responsibly and equitably is another crucial dimension. While digital tools hold immense potential, their benefits can only be realised when access is universal and digital literacy is widespread. The RTE Act must incorporate technology standards and digital-learning entitlements to ensure that no child is left behind in an increasingly digital world.

Community participation, too, must be strengthened. School Management Committees have tremendous potential to democratise governance, but they require capacity-building, awareness, and genuine decision-making power. When parents, teachers, and local communities collaborate, educational outcomes naturally improve.

Most importantly, inclusivity must be placed at the heart of educational reform. This means confronting gender disparities, caste discrimination, disability exclusion, and socio-economic barriers head-on. The next phase of the RTE must commit to intersectional justice, ensuring that every child, regardless of identity or background, has an equal chance to learn and succeed.

Education is not merely a legal right, it is a foundation for social justice, economic development, and democratic participation. Strengthening the RTE Act and addressing ground-level realities is essential for ensuring that every child in India not only attends school but truly learns, grows, and thrives. The promise of the RTE Act can be fulfilled only through sustained political will, informed policy reforms, community ownership, and a national commitment to placing children at the centre of all educational planning.